



Office of Public Affairs
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Founder/CEO and Clinical President of Digital Health Company Convicted in \$100M Adderall Distribution and Health Care Fraud Scheme

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For Immediate Release

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A federal jury in San Francisco yesterday convicted Ruthia He, the founder and CEO of Done, a California-based digital health company, and David Brody, its clinical president, for their roles in a years-long scheme to illegally distribute Adderall over the internet and conspire to commit health care fraud in connection with the submission of false and fraudulent claims for reimbursement for Adderall and other stimulants. Ruthia He was also convicted of conspiring to obstruct justice.

"These defendants carried out a \$100 million scheme to unlawfully provide easy online access to Adderall and other stimulants by targeting drug seekers, engaging in deceptive advertising, and putting profits above patient care," said Acting Assistant Attorney General Matthew R. Galeotti of the Justice Department's Criminal Division. "This verdict sends a clear message that the Criminal Division will hold accountable criminals who attempt to exploit telehealth to write illegal prescriptions for their personal gain. Innovation in health care must never come at the cost of patient safety, professional integrity, or the rule of law."

"Not all drug dealers operate in the shadows or on street corners," said U.S. Attorney Craig H. Missakian for the Northern District of California. "Some, like Ruthia He and David Brody, use computers and social media instead. Doctors take an oath to do no harm. David Brody and other doctors were only too willing to sell their integrity to He and put money ahead of patient wellbeing. Medical necessity must always drive the decision to prescribe controlled substances like Adderall and other stimulants. Ruthia He and David Brody violated that core principle when they exploited telehealth rules to push prescription medication, and hurt patients in the process. This prosecution marks the beginning of a sustained effort. Digital health companies that engage in unlawful drug distribution should take notice that they will not escape accountability."

"These criminals turned telehealth into a pipeline for addiction, recklessly distributing controlled medications with no regard for safety, science, or the law," said Assistant Administrator Cheri Oz of the Drug Enforcement Administration (DEA) Diversion Control Division. "This verdict makes clear that DEA will shut down anyone who abuses medicine, exploits patients, or puts profit above the American people."

"This case represents one of the most egregious abuses of telehealth we've seen," said Deputy Inspector General for Investigations Christian J. Schrank of the U.S. Department of Health and Human Services, Office of Inspector General (HHS-OIG). "The defendants built a brazen business model based on addiction, deception, and disregard for patient safety — flooding the market with controlled substances while defrauding federal health care programs. Their intentional disregard for patient safety and the law put lives at risk and eroded public trust in digital medicine. HHS-OIG will relentlessly pursue those who exploit innovation to endanger lives and steal from taxpayers."

"The fraudulent acts of He and Brody led to clients' substance abuse, addiction and, in some cases, overdose. Instead of putting the care of their customers first, they prioritized their own greed by fraudulently prescribing more than \$100 million worth of Adderall and other stimulants. These were shameful acts, and a jury of their peers agreed. Both He and Brody will now face the consequences of this egregious fraud," said Special Agent in Charge Harry T. Chavis of IRS Criminal Investigation New York.

According to court documents and evidence presented at trial, He and Brody conspired with others to build a billion-dollar technology company and raise money from investors by providing easy access to over 40 million pills of Adderall and other stimulants in exchange for payment of a monthly subscription fee.

He and Done spent over \$40 million on deceptive advertisements on social media networks that sought to convince Americans challenged by a lack of structure during the COVID-19 pandemic that they were suffering from ADHD. Defendants also paid for targeted keyword search advertisements for drug seekers who wanted to obtain Adderall without a legal prescription. The evidence at trial showed that He and Brody sought to place "hard limits" on clinical discretion by limiting the length of the initial appointment to less than half the length of a typical psychiatric examination, and seeking to increase profits by refusing to pay for any follow-up treatment. In order to facilitate the illegal prescriptions, He paid nurse practitioners around the country up to \$60,000 per month to refill prescriptions without clinical interaction, and enabled an "auto-refill" technology feature where patients could receive prescriptions without clinical interaction for years based on an auto-generated email sent each month requesting additional prescriptions. The auto-refill policy, in some instances, resulted in prescriptions being issued for deceased patients.

He instructed employees that successful technology companies profit off addiction, and offered an expensive luxury electric vehicle to employees who broke the law. Brody told nurses to continue prescribing Adderall, even to patients who were abusing other medications, and to disregard the risk of going to jail. He and Brody also prohibited independent clinical practitioners from discharging patients, and patients were not discharged and continued to receive Adderall even after concerned family

members repeatedly notified Done that their children were suffering from bipolar, Adderall-induced psychosis, or other mental health conditions that could be worsened by continued prescriptions.

In order to ensure that members continued paying monthly subscription fees, He, Brody, and others conspired to defraud insurers so that Done members would be able to use insurance to pay for Adderall dispensed at pharmacies. He, Brody, and others submitted false and fraudulent prior authorization requests to insurers, which claimed that Done followed the DSM-5 in diagnosing ADHD, utilized urine drug screens, and falsely claimed that non-stimulants had previously been tried without success. As a result, Medicare, Medicaid, and the commercial insurers paid in excess of approximately \$14 million.

In 2022, national media outlets reported that Done was making Adderall too easy to get online. In response to questions from the media, investors, and certain major pharmacy chains, the defendants made deceptive statements about Done's policies. While internal documents showed that the defendants followed a "customer-first" philosophy where they attempted to obtain customer approval ratings higher than America's highest-rated retailers, offered second opinions to patients who complained of being denied Adderall, and that He – who had no medical training – ultimately was responsible for approving clinical practices, the defendants falsely denied the existence of these policies and claimed Done was run by independent clinical leadership.

To obstruct the government's investigation, the evidence at trial showed that He moved operations to China to make personnel and evidence unavailable. He limited her communications on company platforms, used encrypted messaging apps with disappearing messages, and deleted incriminatory documents, such as language encouraging Done providers to provide Adderall even to patients who did not have ADHD. He also transferred over \$1 million to a Chinese shell company named Make Believe Asia, conducted internet searches for countries that did not have extradition, and was stopped by law enforcement leaving the country.

He and Brody were both convicted of one count of conspiracy to distribute controlled substances, four counts of distribution of controlled substances, and one count of conspiracy to commit health care fraud. He was also convicted of one count of conspiracy to obstruct justice. He and Brody each face a maximum penalty of 20 years in prison on the conspiracy to distribute controlled substances and distribution of controlled substances counts. Sentencings are set for Feb. 25, 2026. Judge Breyer will determine any sentence after considering the U.S. Sentencing Guidelines and other statutory factors.

The DEA, HHS-OIG, HSI, and IRS Criminal Investigation are investigating the case.

Acting Health Care Fraud Unit Chief Jacob Foster, Assistant Chief Emily Gurskis, and Trial Attorney Arun Bodapati of the Criminal Division's Fraud Section and Assistant U.S. Attorney Kristina Green, for the Northern District of California are prosecuting the case.

The Fraud Section leads the Criminal Division's efforts to combat health care fraud through the Health Care Fraud Strike Force Program. Since March 2007, this program, comprised of nine strike forces operating in 27 federal districts, has charged more than 5,800 defendants who collectively have billed federal health care programs and private insurers more than \$30 billion. In addition, the Centers for Medicare & Medicaid Services, working in conjunction with the Office of the Inspector General for the

Department of Health and Human Services, are taking steps to hold providers accountable for their involvement in health care fraud schemes. More information can be found at www.justice.gov/criminal-fraud/health-care-fraud-unit.

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Topic

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